

1 \_\_\_\_\_ BILL NO. \_\_\_\_\_  
2 INTRODUCED BY \_\_\_\_\_  
3 (Primary Sponsor)  
4 BY REQUEST OF THE DEPARTMENT OF REVENUE

5 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING REQUIREMENTS FOR TAXES PAID BY ELECTRONIC  
6 FUNDS TRANSFER; PROVIDING RULEMAKING AUTHORITY; AMENDING SECTIONS 15-1-802 AND 15-1-  
7 803, MCA; AND PROVIDING AN APPLICABILITY DATE."

8  
9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

10  
11 **Section 1.** Section 15-1-802, MCA, is amended to read:

12 **"15-1-802. Taxes to be paid by electronic funds transfer -- limitation.** All taxes due the state must  
13 be paid by electronic funds transfer whenever the amount due is ~~\$500,000~~ \$50,000 or greater. Whenever the  
14 payment of taxes is required to be made by electronic funds transfer under this section and the due date falls  
15 on a Saturday, Sunday, or legal holiday, the payment may be made on the first business day ~~thereafter~~ after  
16 that day."

17  
18 **Section 2.** Section 15-1-803, MCA, is amended to read:

19 **"15-1-803. Rules.** The department shall adopt rules necessary to implement this part, including but  
20 not limited to rules:

- 21 (1) coordinating the filing of tax returns with the payment of taxes by electronic funds transfer; ~~and~~  
22 (2) specifying the form and methods of acceptable electronic payments;  
23 (3) specifying the form and content of electronic funds transfer messages in order to ensure the  
24 proper receipt and crediting of the tax payment; and  
25 (4) providing for an alternative form of payment when electronic payments required by 15-1-802  
26 are not available to a taxpayer."

27  
28 NEW SECTION. **Section 3. Applicability.** [This act] applies to taxes paid by electronic funds

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1 transfers after December 31, 2025.

2 - END -